



The Right to Privacy in the Philippines: Legal Vulnerabilities in the Age of Digital Governance

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Introduction

In today's digital age, nearly every human action generates a digital trace—be it through social media use, online purchases, electronic health records, GPS tracking, or biometric identification. The right to privacy, once primarily concerned with the sanctity of one's home or private conversations, has now expanded into the boundless digital landscape where personal data is continuously gathered, processed, and disseminated. This transformation has tested the traditional scope of the Bill of Rights, especially provisions guarding against unwarranted searches and protecting personal liberty. As technologies like surveillance systems, artificial intelligence, and big data become more advanced, the laws meant to protect individual rights must evolve accordingly. Today, safeguarding privacy is not a mere privilege but a fundamental requirement for preserving human dignity, autonomy, and democratic values. Strong data privacy laws have therefore become crucial tools in interpreting and applying constitutional protections in the digital realm—ensuring that freedom and technological progress move forward together.

Amy Gajda's *Seek and Hide* traces the evolution of privacy in American legal history, showing how it began as a defense for the elite—providing cover for powerful men—and has since grown into a broader concept encompassing personal autonomy and secrecy.¹ The piece highlights a historical tension between the constitutionally protected “right to know” and what Warren and Brandeis dubbed “the right to be let alone.” This tension is reflected in early cases involving public figures like Jefferson, Hamilton, and Cleveland, who sought to suppress disclosures of private behavior despite championing a free press.² Gajda also explores how the privacy-defense dynamic has often masked gender and power imbalances—shielding predominantly male misconduct while elite women's privacy remained unprotected. Meanwhile,

¹ Tulane University News, Law Professor Amy Gajda Explores the History of Privacy in New Book, *Tulane University News* (Jan. 11, 2022), <https://news.tulane.edu/news/law-professor-amy-gajda-explores-history-privacy-new-book>.

² Christopher Wink, *Seek and Hide: The Tangled History of the Right to Privacy* by Amy Gajda (Sept. 11, 2022), <https://christopherwink.com/2022/09/11/seek-and-hide-the-tangled-history-of-the-right-to-privacy-by-amy-gajda/>.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Hochman's *The Listeners* chronicles the normalization of state surveillance: detailing warrantless wiretapping from the 1960s through the 1990s that targeted civil-rights leaders and minority communities, ultimately contributing to mass incarceration.³ In the modern era, privacy as nondisclosure has resurged through battles like Hulk Hogan vs. Gawker, where personal intimacy clashed with free-speech protections. Courts balance this re-emerging privacy against the public's "right to know," especially during movements like #MeToo and Black Lives Matter—which have unmasked both how privacy can enable abuse and how public exposure can drive accountability.⁴ Ultimately, this argues that privacy is not just a legal concept—it's a form of control. It serves to protect dignity and autonomy, but it's also deployed selectively, based on who uses it and why. This ongoing struggle to define and defend privacy in the digital age makes clear why the "privacy wars" remain so intense and unresolved.

Constitutional and Statutory Protection under Data Privacy Act of 2012

Section 2 of the Data Privacy Act of 2012 provides:

It is the policy of the State to protect the fundamental human right of privacy, of communication while ensuring free flow of information to promote innovation and growth. The State recognizes the vital role of information and communications technology in nation-building and its inherent obligation to ensure that personal information in information and communications systems in the government and in the private sector are secured and protected.⁵

Despite constitutional and statutory guarantees, the Philippine government has consistently failed to safeguard Filipinos' digital rights. Government institutions have suffered repeated data breaches, and regulatory responses have been inadequate. State policies such as the SIM Registration Law and the Anti-Terrorism Law (ATL) further weaken data privacy through mechanisms that permit mass surveillance with minimal oversight. In the

³Armwood Law Blog, *The Right to Privacy in the Digital Age*, Armwood Law (Jan. 5, 2023), <https://armwoodlaw.com/right-to-privacy-digital-age>.

⁴ Louis Menand, *Why the "Privacy" Wars Rage On*, New Yorker (June 27, 2022), <https://www.newyorker.com/magazine/2022/06/27/why-the-privacy-wars-rage-on-amy-gajda-look-and-hide-brian-hochman-the-listeners>.

⁵Data Privacy Act of 2012, Rep. Act No. 10173, § 2 (2012) (Phil.).



broader political context, digital platforms have been weaponized to manipulate public opinion, erode democratic discourse, and target political dissent.

The right to privacy of communication is explicitly guaranteed under Article III, Section 3(1) of the 1987 Philippine Constitution. However, despite the profound changes in communication technologies over the past decade, the implementing statute—the Data Privacy Act of 2012 (DPA)—remains unchanged. The law is increasingly insufficient in addressing contemporary privacy threats posed by state surveillance, private-sector data harvesting, and cyberattacks.⁶ The National Privacy Commission (NPC), the agency tasked with enforcing the DPA, has largely been reactive. It has failed to institutionalize a culture of data protection, especially within government offices. Rather than proactively promoting rights-respecting frameworks, the state has repeatedly deployed the narrative that “those with nothing to hide have nothing to fear.” This rhetoric, while politically expedient, undermines the broader social and democratic value of privacy by encouraging the public to voluntarily cede their rights in exchange for vague promises of national security.⁷

State Surveillance Laws and the Erosion of Digital Rights

The Philippine government has enacted a series of laws that pose significant threats to digital privacy and civil liberties. These legislative measures, often justified under the guise of national security or public safety, have expanded the state’s surveillance powers with minimal safeguards or oversight. Rather than strengthening trust in public institutions, these laws have created an environment of fear and vulnerability—particularly among journalists, activists, and ordinary citizens exercising their rights online. Among the most concerning of these enactments are the Anti-Terrorism Law and the SIM Registration Act, both of which grant the government broad authority to monitor, collect, and retain personal data with limited accountability.

⁶*Ople v. Torres*, G.R. No. 127685, July 23, 1998, <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/45/25549>.

⁷National Privacy Commission, <https://privacy.gov.ph>



The Anti-Terrorism Act of 2020

Section 2 of the Anti-Terrorism Act states:

It is declared a policy of the State to protect life, liberty, and property from terrorism, to condemn terrorism as inimical and dangerous to the national security of the country and to have welfare of the people, and to make terrorism a crime against the Filipino people, against humanity, and against The Law of Nations.⁸

In the implementation of the policy stated above, the State shall uphold the basic rights and fundamental liberties of the people as enshrined in the Constitution.

The State recognizes that the fight against terrorism requires a comprehensive approach, comprising political, economic, diplomatic, military, and legal means duly taking into an account the root cause of terrorism and/or criminal activities. Such measures shall include conflict management and post-conflict peace building, addressing the roots of conflict by building state capacity and promoting equitable economic development.

Nothing in this Act shall be interpreted as a curtailment, restriction or diminution of constitutionally recognized powers of the executive branch of the government. It is to be understood, however, that the exercise of the constitutionally recognized powers of the executive department of the government shall not prejudice respect for human rights which shall be absolute and protected at all times.

Under the ATL, authorities may surveil any individual suspected of terrorism or of providing material support to a suspect, without requiring clear evidentiary thresholds. This broad discretion undermines due process and creates a chilling effect on political expression, especially in the absence of meaningful judicial review or effective oversight.⁹

⁸Anti-Terrorism Act of 2020, Rep. Act No. 11479 (2020), https://lawphil.net/statutes/repacts/ra2020/ra_11479_2020.html.

⁹ Anti-Terrorism Act of 2020, Rep. Act No. 11479 (2020) (Phil.).



The SIM Registration Act

Section 2 of the Sim Registration Act provides:

The State recognizes the vital role of information and communications technology in nation-building and encourages its growth and development.

It is equally cognizant that beneficial as modern technology is, its illegal or malicious use endangers people' lives, damages property, poses hazards to public order, and even threatens the security of nations.

The State shall promote responsibility in the use of Subscriber Identity Module (SIM) and provide law enforcement agencies the tools to resolve crimes which involve its utilization and a platform to deter the commission of wrongdoings.

Towards this end, the State shall require the registration of SIM for electronic devices by all users.¹⁰

Enacted under the pretense of curbing spam and scam messages, the SIM Registration Act mandates the submission of personally identifiable information before a SIM card may be activated. Privacy experts warned that the law would neither deter scams nor enhance cybersecurity, but rather, expose citizens to heightened risks of surveillance and data exploitation. Within the first year of implementation, the National Telecommunications Commission (NTC) received over 45,000 complaints of text scams—demonstrating the measure's ineffectiveness. Moreover, black markets for pre-registered SIM cards have emerged, further undermining the law's supposed objective.

Notably, telcos such as Smart and Globe were found attempting to utilize SIM registration data for marketing—an act in clear violation of the DPA. Identity verification procedures were also poorly implemented, with some registrants able to submit cartoon characters as valid IDs.

¹⁰ *SIM Registration Act, Rep. Act No. 11934, § 2 (2022) (Phil.).*



Rise of Digital Disinformation in the Philippines and the Public Service Act

Section 1 of the Public Service Act states:

The State recognizes the role of the private sector as one of the main engines for national growth and development. It is hereby declared the policy of the State to encourage private enterprise and expand the base of investment in the country, with the goal of providing efficient, reliable and affordable basic services to all. These policies are fulfilled by: (a) ensuring effective regulation of public services; (b) providing reasonable rate of return to public services; (c) rationalizing foreign equity restrictions by clearly defining the term "public utilities"; and (d) instituting processes for the protection of national security.¹¹

The recent amendments to the Public Service Act (previously the Public Act) have liberalized the ownership of key infrastructure sectors, notably allowing up to 100% foreign ownership in telecommunications. While the reform is framed as a means to enhance foreign direct investment and promote competition in the telecommunications industry, it simultaneously raises serious concerns regarding data sovereignty. Telecommunications infrastructure serves as the backbone for the transmission, storage, and processing of Filipinos' personal and sensitive data. In instances where such infrastructure is owned or operated by foreign entities, the ability of the Philippine government to exercise full jurisdictional control and oversight over the handling of digital communications may be significantly weakened. This creates vulnerabilities not only in terms of privacy protection but also in national cybersecurity. The absence of stringent safeguards could potentially expose critical data flows to foreign surveillance, data breaches, or manipulation, thereby undermining the State's constitutional obligation to protect the privacy and security of its citizens in the digital sphere.¹² The Philippines has served as a laboratory for data-driven political experimentation. Facebook's 2013 initiative to offer free access to its platform and select websites significantly increased Filipinos' dependence on the tech giant. This created fertile ground for behavioral profiling and manipulation. In the lead-up

¹¹ Republic Act No. 11659, An Act Amending Commonwealth Act No. 146 (Public Service Act), https://lawphil.net/statutes/repacts/ra2022/ra_11659_2022.html (Phil.).

¹² *Id.*



to the 2016 elections, data from Filipino Facebook users was exploited by Cambridge Analytica to influence voter behavior. The same disinformation machinery has been linked to the electoral campaign of President Ferdinand “Bongbong” Marcos Jr., contributing to his rise to power. Under his administration, harassment of political organizations and activists has intensified. Online troll farms have been mobilized to red-tag activists and link them to insurgent groups such as the Communist Party of the Philippines. The government has even requested the NTC to block access to certain websites on the basis of alleged affiliations with communist organizations, absent due process.¹³

Conclusion

The Data Privacy Act of 2012 lacks the necessary robustness and flexibility to address today’s cybersecurity and privacy challenges. Section 11 of the Act outlines data privacy principles, yet these are frequently violated by both government and private entities. For example, businesses often require personal data for transactions that do not necessitate such information—contravening the principle of proportionality. The surge in cybercrime—reportedly increasing by 400% in 2023—has been attributed to phishing and social engineering attacks that succeed primarily because of data vulnerabilities. The NPC has not taken sufficient steps to investigate or penalize breaches caused by systemic failures in government cybersecurity protocols. The Philippine legal framework governing data privacy and digital rights remains woefully outdated and ineffective. The convergence of surveillance-enabling laws, underregulated technologies, and weak enforcement of privacy regulations has produced a national environment where fundamental rights are consistently at risk. The right to privacy, while constitutionally enshrined, is being eroded through legislative design and administrative neglect. Urgent reforms are needed. This includes updating the Data Privacy Act to address modern technological threats, ensuring greater independence and enforcement power for the NPC, and subjecting surveillance-related laws to rigorous constitutional scrutiny. Without such reforms, the Philippines risks sliding further into a digitally enabled state of repression, where the right to privacy exists only in name.

¹³ Gideon Lasco, *The Disinformation Paradox Gripping the Philippines*, *East Asia Forum* (June 28, 2025), <https://eastasiaforum.org/2025/06/28/the-disinformation-paradox-gripping-the-philippines/>.



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